

HOUSE No. 989**The Commonwealth of Massachusetts**

PRESENTED BY:

Jack Patrick Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning the use of animals in product testing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>1/15/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>2/3/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>2/3/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/3/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/5/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/5/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/5/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>2/5/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/13/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/13/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/13/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/13/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>2/13/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/13/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>2/13/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/13/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>3/10/2025</i>

<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/10/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>3/10/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>3/10/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/10/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/10/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>3/10/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/10/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/10/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/10/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/10/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/12/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/12/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/12/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/12/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/12/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>3/14/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/14/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>3/14/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/17/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/18/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>3/25/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/31/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/7/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/8/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>4/9/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/25/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>4/25/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/25/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>4/29/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/6/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>6/27/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>9/24/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>10/27/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>10/27/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>10/27/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>10/27/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>10/27/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>10/27/2025</i>

HOUSE No. 989

By Representative Lewis of Framingham, a petition (accompanied by bill, House, No. 989) of Jack Patrick Lewis and others relative to the use of animals in product testing. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 850 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning the use of animals in product testing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 140 of the General Laws is hereby amended by inserting after
2 Section 174I the following new section:-

3 Section 174J.

4 (a) As used in this section, the following words shall have the following meanings unless
5 the context clearly requires otherwise:

6 "Alternative test method", a process or procedure implemented to obtain information
7 regarding the biological effects of exposure to a chemical or agent that does not employ the use
8 of an animal and results in the gathering of valid information that would otherwise be acquired
9 through the use of a traditional animal test method, including, but not limited to, computational

toxicology, bioinformatics, high-throughput screening methods, chemical substances testing, tiered testing methods, in vitro studies, and systems biology.

“Commissioner”, the commissioner of the department of public health.

"Contract testing facility", a partnership, corporation, association, or other legal relationship that tests chemicals, ingredients, product formulations, or products.

"Manufacturer", a partnership, corporation, association, or other legal relationship that produces products, product formulations, chemicals, or ingredients.

"Medical research", investigations, experiments, and studies to discover, develop, or verify knowledge relating to the causes, diagnosis, treatment, prevention, or control of physical or mental diseases and impairments of humans and animals or relating to the development of biomedical products, devices, or pharmaceuticals.

"Traditional animal test method", a process or procedure using animals to obtain information regarding the biological effects of exposure to a chemical or agent.

(b) (1) When testing a product, product formulation, chemical, or ingredient in the Commonwealth, no manufacturer or contract testing facility shall use a traditional animal test method for which a valid alternative test method exists. No provision of this subsection shall be construed to apply to a test method conducted for the purposes of medical research.

(c) The commissioner shall promulgate regulations to implement, enforce, and administer this section and shall establish standards for alternative test methods to ensure safety and comparable validity of results to traditional animal test methods. The commissioner shall

30 consider the Organization for Economic Co-Operation and Development's Guidelines for the
31 Testing of Chemicals when establishing said standards.

32 SECTION 2. The commissioner of public health shall promulgate regulations to
33 implement this act no later than 180 days following passage of this act.

34 SECTION 3. Section 1 shall take effect 6 months after the passage of this act and Section
35 2 shall take effect upon passage.